

PCU325958 Figueroa, Shallon vs. Rivera, Primitivo et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-06-23

Motion: Defendant Velazquez's Motion to Compel Further Responses to Requests for Admissions, Special Interrogatories and Requests for Production of Documents; Sanctions

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Re: Figueroa, Shallon vs. Rivera, Primitivo et al

Case No.: PCU325958

Date: June 23, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant Velazquez's Motion to Compel Further Responses to Requests for Admissions, Special Interrogatories and Requests for Production of Documents; Sanctions

Tentative Ruling: To deny the motion

Facts

In this negligence, breach of habitability, nuisance and breach of covenant of quiet enjoyment action, Plaintiff sued, amongst other defendants, Defendant Alex Velasquez. On January 15, 2026, Plaintiff filed an amended complaint alleging the same causes of action.

On March 19, 2026, Defendant Velasquez served Plaintiff with, at issue here, a first set of Requests for Admissions, Special Interrogatories and Requests for Production of Documents.

Defendant indicates Plaintiff, on April 21, 2026, "responded with boilerplate objections, improper 'cannot admit or deny' statements, conclusory narratives, and no document production." (Declaration of Velasquez ¶13.) Defendant indicates these responses were not verified. Further, that on April 22, 2026, Defendant sent a written meet and confer letter identifying these deficiencies. That Plaintiff's counsel requested a phone call, but that Defendant reasserted a demand for a response in writing.

On May 5, 2026, Defendant Velasquez filed a single motion to compel further responses to Requests for Admissions, Special Interrogatories and Requests for Production of Documents. The motion contained a declaration from Plaintiff, a combined

separate statement and a request for sanctions in the amount of \$1,600.

In opposition, Plaintiff notes a lack of a proper meet and confer process and a failure to provide a proper separate statement as fatal to the motion.

Authority and Analysis

Separate Statement

The Court first examines the separate statement filed in connection with these motions, noting that California Rule of Court, rule 3.1345(c) states:

(c) Contents of separate statement

A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include-for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested-the following:

- (1) The text of the request, interrogatory, question, or inspection demand;
- (2) The text of each response, answer, or objection, and any further responses or answers;
- (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;
- (4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;
- (5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and
- (6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document.

Here, the separate statement is insufficient as Defendant summarizes, groups and otherwise requires the Court to examine documents outside the separate statement to determine the request or interrogatory at issue, as well as the purported insufficient response thereto.

Therefore, the Court denies the motion.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.